

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

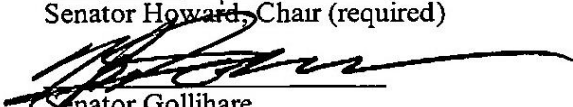
I move to amend Senate Bill No. 1386 by substituting the attached floor substitute (Request # 3833) for the title, enacting clause, and entire body of the measure.

Submitted by:


Senator Gillespie

I hereby grant permission for the floor substitute to be adopted.

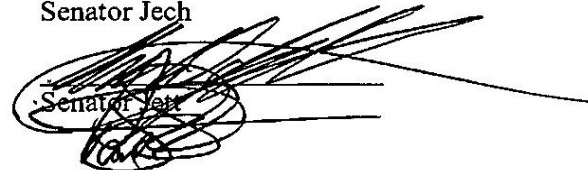

Senator Howard, Chair (required)


Senator Gollihare

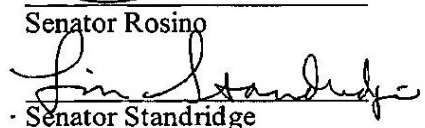
Senator Boren

Senator Brooks

Senator Jech


Senator Jech

Senator Rosino

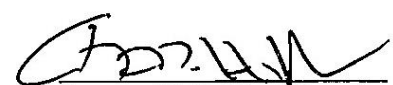

Senator Standridge

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor Leader

Note: Judiciary Committee majority requires five (5) members' signatures.

I hereby grant permission for the floor substitute to be adopted.


Senator Hall, Chair (required)

Note: Appropriations committee requires Appropriations committee Chairman's signature.

Gillespie-TEK-FS-SB1386
3/23/2026 4:12 PM

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(Floor Amendments Only) Date and Time Filed: 3/24/26 11:04am *fd*

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1386

By: Gillespie, Prieto, and
McIntosh of the Senate

and

Hildebrant and Woolley of
the House

FLOOR SUBSTITUTE

[courts - pilot project - rules - audio and video
recordings - assessment - provisions - effective
date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 20 O.S. 2021, Section 1512, is
amended to read as follows:

Section 1512. A. The Supreme Court ~~is authorized to~~ shall
establish a pilot project for the use of ~~videotape~~ audio and video
recording equipment in courtrooms for the production of ~~videotape~~
~~records~~ audio and video recordings for transcripts where court
reporters are not available, ~~if the Supreme Court has funds~~
~~available that can be used for this purpose~~ and for the preservation
of public access to judicial records. The pilot project shall be

1 implemented in a minimum of twelve courtrooms, with preference given
2 to courtrooms without a court reporter. The Administrative Office
3 of the Courts shall promulgate rules for the use of audio and video
4 recording equipment in courtrooms. ~~Rules for use of video equipment~~
5 ~~in courtrooms must have the approval of the Supreme Court.~~

6 B. Rules promulgated pursuant to subsection A of this section
7 shall include, but not be limited to:

8 1. Technical specifications for the acquisition, installation,
9 maintenance, and operation of audio and video recording equipment;

10 2. Standards for the digitization, storage, encryption, secure
11 preservation, retention, and archiving of audio and video
12 recordings;

13 3. Standards allowing judicial restriction of audio and video
14 recording upon written findings that are supported by clear and
15 convincing evidence and narrowly tailored to protect a compelling
16 interest;

17 4. Standards restricting access to audio and video recordings
18 of proceedings related to family law to interested or otherwise
19 authorized parties and presiding judges. Such standards shall
20 require audio and video recordings to be accessed through secure,
21 encrypted web addresses that cannot be forwarded to, shared with, or
22 accessed by unauthorized parties;

23 5. Procedures for portable audio and video recording systems
24 outside permanent courtroom facilities;

1 6. Requirements ensuring compatibility of audio and video
2 recordings with the Oklahoma Court Information System pursuant to
3 Sections 1314 and 1315 of this title;

4 7. Standards prohibiting the photographing or recording of:

- 5 a. jurors or prospective jurors pursuant to Sections 853
6 and 853.1 of Title 22 of the Oklahoma Statutes,
- 7 b. minors protected pursuant to Section 1-6-107 of Title
8 10A of the Oklahoma Statutes,
- 9 c. protected victims or witnesses pursuant to Section
10 142A-9 of Title 21 of the Oklahoma Statutes and
11 Section 60.14 of Title 22 of the Oklahoma Statutes,
- 12 d. vulnerable adults pursuant to Section 10-110 of Title
13 43A of the Oklahoma Statutes, and
- 14 e. any other person whose identity is confidential under
15 state or federal law;

16 8. Standards governing the authorized access, reproduction, and
17 distribution of audio and video recordings created pursuant to this
18 section. Such standards shall provide that audio and video
19 recordings constituting part of the official record shall not be
20 used for purposes of harassment, intimidation, or the knowing
21 misrepresentation of judicial proceedings, and may establish
22 reasonable limitations necessary to protect the safety and privacy
23 of parties and the dignity and integrity of the court and judicial
24 process; and

1 9. Standards prohibiting the commercial exploitation of audio
2 and video recordings unrelated to bona fide news reporting, academic
3 research, legal education, or public interest commentary. Such
4 standards shall require a disclaimer for all audio and video
5 recordings that includes notice to the viewer of any applicable
6 court rule violations or civil or criminal penalties for
7 unauthorized access or dissemination of audio and video recordings
8 created pursuant to this section.

9 C. Audio and video recordings created pursuant to this section
10 shall constitute part of the record of the proceeding and shall
11 include sufficient metadata to verify authenticity and detect
12 alteration. Any transcript prepared from audio and video recordings
13 shall be produced and certified in accordance with applicable laws
14 and Supreme Court rules governing transcript preparation. Nothing
15 in this subsection shall be construed to require an audio or video
16 recording to serve as the official record of a proceeding. The
17 presiding judge may, in the exercise of judicial discretion and
18 subject to rules promulgated by the Supreme Court, designate an
19 audio or video recording created pursuant to this section as the
20 official record of the proceeding only upon written order of the
21 court when a court reporter is not present or when the transcript
22 has not been prepared.

23 D. The Administrative Office of the Courts shall conduct an
24 annual statewide assessment evaluating:

1 1. Open court reporter positions by judicial district;

2 2. Projected retirements of court reporters within five (5)
3 years;

4 3. Court reporter recruitment and retention challenges;

5 4. Average transcript preparation time from request to
6 certification in pilot and non-pilot courtrooms;

7 5. Audio and video recording system operational time
8 percentages, documented equipment failure incidents, and average
9 system downtime durations due to equipment failure or tampering;

10 6. Case processing timelines and continuances attributable to
11 court reporter unavailability; and

12 7. The impact on access to justice in understaffed courts.

13 E. The Administrative Office of the Courts shall electronically
14 submit the annual assessment described in subsection D of this
15 section to the Governor, the President Pro Tempore of the Senate,
16 and the Speaker of the House of Representatives. A comprehensive
17 five-year assessment shall be submitted no later than sixty (60)
18 days prior to the convening of the regular legislative session
19 following the fifth anniversary of the effective date of this act.

20 Such assessment shall be electronically submitted to the Legislature
21 for evaluation of whether the pilot project should be maintained,
22 expanded, or modified.

23 F. If the annual assessment demonstrates that open court
24 reporter positions exceed twelve courtrooms, the Supreme Court may

1 authorize expansion of the pilot project to additional courtrooms in
2 a number equal to the open court reporter positions, subject to
3 legislative appropriation. Nothing in this section shall be
4 construed to require expansion without specific legislative
5 appropriation.

6 SECTION 2. This act shall become effective November 1, 2026.

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